

Constitutional Cherry-Picking: Constructing “The People” in Participatory Constitution-Making*

Matthew Martin
Department of Government
The University of Texas at Austin
ORCID: 0000-0003-3460-3603

Abstract

How do drafters leverage public consultation during constitution-making? Research focuses on participation’s downstream effects, sidestepping elite deliberations where the will of “the people” takes shape. I argue that drafters engage in cherry-picking, selectively invoking consultation inputs and procedures to elevate supportive and discredit contrary evidence. Through this mode of representative claim-making, these elites do not transmit citizen preferences but characterize them to fit their constitutional positions. Using an LLM-assisted pipeline, I classify consultation invocations in plenary transcripts from Chile (2021–22) and Cuba (2018–19), identifying two modes distinguished by interpretive control of the consultation record. In Chile’s *contested* mode, the supermajority invoked consultation to underwrite reforms while the opposition attacked its design. In Cuba’s *concentrated* mode, the Drafting Commission invoked consultation to validate decisions already made while dominating the floor. Cherry-picking makes visible what constituent power theory often conceals — that drafters represent a public whose will they partly construct.

Keywords—constitution-making; public consultation; representative claim-making; large language models; text annotation; Chile; Cuba

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1 Introduction

Between 1974 and 2021, 40.3% of national constitutions were drafted through processes that involved consulting the public (Martin 2025b). Drafters in both democracies and autocracies now routinely organize public hearings, deliberative assemblies, and citizen submissions to gather input on constitutional design (Blount 2011; Elkins et al. 2008). Yet, as public consultation generates vast amounts of data on citizens' constitutional preferences (see Cruz et al. 2023), the black box at the center of these processes grows harder to ignore. How do drafters actually use public input during constitutional negotiations?

Existing research focuses on downstream effects—how consultation shapes constitutional legitimacy (Maboudi and Nadi 2022; Moehler 2006; Hirschl and Hudson 2024), final texts (Hudson 2018, 2021a, 2021b), and democratic outcomes (Carey 2009; Eisenstadt et al. 2015, 2017; Pavlik and Young 2026; Saati 2015). With few exceptions (Chernykh and Elkins 2022), the literature sidesteps a key intermediate stage: deliberations among political elites, where public input is invoked or ignored. This paper addresses that gap, examining how drafters invoke public input to construct a will of “the people” from the raw material consultation provides.

I view public consultation not as an impartial mechanism for identifying mass constitutional preferences but as a tool elites deploy to build consensus around their constitutional agendas (Martin 2025b). Drafters often engage in *cherry-picking*, selectively invoking consultation—both its input and process—to elevate aligned evidence in support of their constitutional positions while discrediting contrary evidence as unrepresentative or illegitimate. Cherry-picking thus operates as a mode of representative claim-making (Saward 2010; Fossen 2019) whereby drafters call upon consultation to construct characterizations of “the people.” Behind the scenes, the interpretive practice of “will-confirmation” (Martin 2026) transforms an underdetermined evidentiary record into validation of representative authority. Cherry-picking is the rhetorical deployment of that partial, constructed will in the spotlight of public debate.

To test my arguments, I examine recent constitution-making processes in Chile (2021–22) and Cuba (2018–19). Both cases involved extensive public consultation as a central institutional feature of the drafting process. But they sit at opposite poles of how interpretive authority over consultation is distributed, making them productive sites for examining how cherry-picking operates. I analyze plenary transcripts from the Chilean Constitutional Convention and the Cuban National Assembly, where invocations of consultation

entered the public record. Using a “parallel demonstration of theory” approach (Skocpol and Somers 1980), I show how cherry-picking operates in both a democratic and an autocratic case, and how its form tracks the distribution of interpretive authority within drafting bodies.

Methodologically, I develop a Large Language Model (LLM)-assisted coding pipeline that identifies invocations of public consultation across each country’s corpus and classifies each reference by its rhetorical function and valence. This approach builds on recent work demonstrating that LLMs often outperform human coders on text-annotation tasks (Gilardi et al. 2023; Törnberg 2025). I pair the pipeline with a multi-layer validation protocol including stratified hand-coded review, keyword searches, and inter-run reliability assessments (Abdurahman et al. 2025; Pangakis et al. 2023; Törnberg 2024). This combination bridges the scale of automated classification with the contextual depth of qualitative case analysis, offering a replicable framework for tracing the invocation of public consultation across large corpora of elite deliberations.

I trace how “the people” at the center of constitutional politics is constructed as one voice from many. Cherry-picking makes visible what constituent power theory tends to conceal — that drafters represent a public whose will they partly shape in alignment with their own constitutional positions. These findings contribute to an emergent literature questioning the utility of this framework (Sethi 2024; Verdugo 2023). They also challenge how representation theory and constitutional practitioners often treat responsiveness to public input as the transmission of a presupposed will rather than its active curation. Ultimately, constituent power demands a performance from both framers and the framed, and public consultation offers the stage on which that performance unfolds.

2 Public Consultation and Elite Deliberation

Few constitution-making procedures carry the normative weight assigned to public consultation. Scholars, practitioners, and international organizations treat it as fundamental to a new constitution’s legitimacy (Brandt et al. 2011; Chambers 2004; Dann et al. 2011; Elkins et al. 2008; Hart 2003, 2010; Widner 2008). Public consultation thus has become a central tenet of today’s “grand narrative” of constitutional transition (Saati 2025), a means to sustain the legal fiction of popular co-authorship (Martin 2026). By fostering the appearance of responsiveness through consultation, drafters present the constitution as a collective endeavor, softening the visible role of elite negotiation. When a text is “accepted... as deserving of respect or obedience” (Fallon Jr 2005, 1790) — that is, when it acquires sociological legitimacy — it prompts voluntary

compliance, a key marker of constitutional success.

Despite the normative weight of public consultation, evidence of its legitimacy effects is mixed at best. In Uganda (1988–95), citizen participation failed to boost support for the constitution (Moehler 2006, 2008), while in Tunisia (2011–14), it enhanced support, particularly for rights protections (Maboudi and Nadi 2022). Cross-national evidence is similarly equivocal, showing participation has little overall impact on constitutional compliance (Pavlik and Young 2026). Through survey experiments across six countries, Hirschl and Hudson (2024) find that, rather than participation alone, perceived fairness and openness drive legitimacy gains. Specifically, visible “actions taken by the drafters to demonstrate their engagement” with public submissions foster a sense of procedural justice, even among non-participants (8). Further experimental evidence suggests procedural propriety primarily benefits the legitimacy of the rulemaker rather than the rule itself (Feroz et al. 2026), shifting analytical focus to the elites who control the process.

These political elites are well aware of the symbolic value of public input, even though it rarely maps directly onto constitutional text (Hudson 2018, 2021b; Saati 2020). They use it to project responsiveness regardless of how much it actually shapes the text (Martin 2025b). Drafters cite consultation to present proposals as grounded in popular will, seeking to elevate their bargaining power and marginalize rivals. Consultation data becomes a pliable rhetorical device; a delegate might claim that “40% of participants support enshrining animal rights,” but how such input is interpreted remains contested. In Zimbabwe (2009–13), the dispute over whether to weight submissions by frequency or quality grew sharp enough to suspend constitutional negotiations (Horowitz 2021, 172). The legitimacy benefits of consultation hence depend less on what citizens contribute than on what drafters do with those contributions.

The volume of public input compounds drafters’ interpretive discretion. In Brazil (1987–88), drafters faced 72,719 handwritten postcards (McDonald 2022, 636). Today, the proliferation of consultation mechanisms — submissions, surveys, town halls, and deliberative fora (see Blount 2011; Houlihan and Bisarya 2021) — generates input at scales that strain or exceed their capacity for holistic engagement. What appears in plenary debate as the views of “the people” is necessarily a curated subset, selected through interpretive choices that consultation’s procedural framing tends to obscure. Yet few studies examine how drafters deploy the evidentiary record during negotiations. Hudson’s (2021) work on Brazil and South Africa remains foundational, but these cases predate the digital mechanisms now common in countries such as Iceland, Egypt, and Nepal (Hudson 2018; Khanal 2014; Maboudi and Nadi 2016; Popescu and Loveland 2022).

Moreover, Hudson’s thesis — that strong, competitive parties mediate public input — does not extend to entrenched autocracies (Hudson 2021a, 14).

This paper addresses the gaps above by studying the rhetorical deployment of consultation in plenary debate. This is what Chernykh and Elkins (2022, 531) call “ostensive argumentation,” where drafters justify or validate claims about constitutional design, here through the invocation of public sentiment. Transcripts document how drafters present themselves, justify decisions, and frame their authority (Brinks and Blass 2018), but the scale of these corpora has historically constrained systematic analysis. Analyzing these deliberations with recent computational methods reveals the selective invocation of public consultation — what I term constitutional cherry-picking — as a recurring feature of participatory constitution-making.

3 Cherry-picking as Representative Claim-Making

Cherry-picking is a normatively loaded concept. At its core, it describes the selective use of evidence in service of some preferred position, marshaling what supports one’s view and setting aside what does not. This selectivity assumes two forms: (1) *distortion* — culling a subset of source material in ways that misrepresent the whole (Font et al. 2018); or (2) *instrumentalization* — citing supportive input while dismissing or disregarding dissent (Smith 2009, 93). In both cases, actors deploy a curated body of evidence as a rhetorical resource rather than engaging with the full record. Here, I focus on the latter conceptualization, which Sintomer et al. (2008) describes as “selective listening.” Applied to constitution-making, cherry-picking targets both the content and procedures of consultation. Drafters invoke aligned evidence to support their constitutional positions and portray contrary evidence as unrepresentative or illegitimate.

Cherry-picking, so understood, is a mode of representative claim-making (Saward 2008, 2010). According to constructivist scholars, representatives do not transmit presupposed preferences from a public whose will simply awaits expression (Disch 2015; Disch et al. 2019), a “representation as presence” account associated with Pitkin (1967). Rather, they construct *characterizations* (Fossen 2019), attributing to the public particular interests, preferences, and orientations. Claim-making is thus an ongoing, performative activity of constructing a particular portrayal of the represented, what Saward (2010, 47–48) terms the *object* of representation. Public consultation supplies the evidentiary material through which representatives frame the object as faithful to the referent: the actual people (plural) being represented, with all the ambiguity, tension, and contradiction therein. The success of representative claims depends on audience acceptance,

making one-sided invocation of consultation a viable rhetorical strategy.

This type of claim-making operates at two distinct sites. Martin (2026) examines its inward face through elite interviews, identifying “will-confirmation” as the interpretive practice through which drafters render their characterizations as derived from the consultation record, even as those characterizations reflect prior commitments. Cherry-picking is the outward, rhetorical surface of will-confirmation. It involves the strategic deployment of “substantive portrayals” (Fossen 2019, 828) in plenary debate, where drafters defend constitutional positions, contest opponents, and warrant decisions before fellow elites and a watching public. The present paper traces how this interpretive practice surfaces in the public record, analyzing how characterizations are deployed and contested in plenary debate.

Drafters interpret public input under pressures tending toward confirmation bias (Nickerson 1998) and motivated reasoning (Kunda 1990). Constitutional consultations are dominated by highly motivated, ideologically driven individuals whose contributions focus on rights and duties (Cruz et al. 2023; Maboudi 2020; Raveau et al. 2020). Drafters frame these ideological signals and topic skews as representative or unrepresentative amid the high-stakes partisan competition of constitution-making (Brinks and Blass 2018; Higley and Burton 2006; Lijphart 1984; Partlett and Nwokora 2019). Together with a “contestatory” decision-making register (Setälä 2017, 852), these conditions lead drafters to “filter input from the public through their already formed understanding of what the constitution should do” (Hudson 2021b, 36). They also make cherry-picking a systemic pattern, beyond any individual strategy.

The central explanatory factor behind constitutional cherry-picking is a vulnerable *originating coalition* — the actors who design the new constitution (Brinks and Blass 2018, 50). They entrench certain commitments within the “sphere of constitutional justice” (5) that they expect to be threatened by the future ruling coalition. Constitution-making, a brief moment in the *longue durée* of ordinary politics, is the originating coalition’s one chance to lock in protections for the issues, interests, and arrangements they care about. As Martin (2025b, 3) argues, consultation is “a high-stakes gambit” for democratic elites seeking to reshape political competition through citizen discontent, and a “calculated survival strategy” for autocratic leaders managing elite threats to regime stability. Across these pathways, consultation supplies material that originating coalitions can deploy to lend their reform commitments an evidentiary grounding that elite imposition alone cannot provide. The more vulnerable the project — to legislative obstruction or to rival elite challenge — the greater the incentive to characterize consultation in ways that warrant entrenching it.

The composition of the originating coalition shapes the contours of characterization. Brinks and Blass (2018, 52) distinguish *majoritarian* originating coalitions, dominated by the expected ruling coalition, from *minoritarian* originating coalitions, which include minoritarian social interests against it. The distinction tracks how interpretive authority over consultation is distributed during drafting. In majoritarian configurations, a small set of authorized interpreters controls how public input enters the record, policing which voices count from a single ideological vantage. In minoritarian configurations, interpretive authority is distributed across competing blocs, each with its own stakes in how consultation is read. Neither produces the kind of contestation that would check one-sided judgments of the record and characterizations of the represented. Public consultation thus falls short of the bridge between citizen will-formation and elite decision-making envisioned by its proponents (Colón-Ríos 2012; Hart 2003; Landemore 2015). Martin (2026) contends that this contestation deficit is structural to how large-scale representative institutions — and the participatory mechanisms that serve them — are currently arranged. The present study makes it visible.

These dynamics have implications for constituent power. This tradition treats constitution-making as an act by the “people” to “make and re-make the institutional arrangements through which they are governed” (Loughlin 2014, 219; see also Schmitt 2008; Sieyès 2003). Legitimacy then rests on a pre-political source of authority (see Rubinelli 2020) — what more critical scholarship considers an indeterminate abstraction (Sethi 2027; Verdugo 2023). Public consultation, in turn, has become central to constituent power theory, even crystallizing as an international norm (Franck and Thiruvengadam 2010; Saati 2019; Sethi 2023, 2024). These procedural mechanisms provide elites with “impartial language” (Elster 1997, 133) for entrenching their preferences and sustaining the myth of popular rule (Morgan 1989).

Yet no constitution has ever been drafted by an entire nation, just as no public consultation has ever fully captured the diverse — and often contradictory (Elkins and Hudson 2022) — voices of a population. “The people” that apparently exercises constituent power, unbound by the restrictions of ordinary politics, is constructed during the drafting moment through the selective invocation of some voices over others. The institutional configurations that produce cherry-picking hinder contestation that might otherwise surface this construction. Constitution-making, on this account, is a political settlement crafted by those with the power to define it. Consultation supplies the material that cloaks elite negotiations in a popular sheen.

4 Materials and methods

4.1 Research questions

In this study, I address two key questions: (1) How frequently do constitutional drafters invoke public input or the consultation process during plenary debate? (2) What rhetorical work do these invocations perform? Answering these questions shows how cherry-picking shapes the deliberative record of constitutional drafting bodies.

4.2 Data

I analyze plenary session transcripts from the Chilean Constitutional Convention and the Cuban National Assembly. For Chile, I gathered transcripts from plenary sessions 31–110,¹ archived by the [Library of the National Congress of Chile](#). In total, this corpus encompasses 80 sessions, 22,557 speaker turns, and 2,360,933 words. During pre-processing, I removed non-speech text (e.g., vote recordings). Each row in the data represents a speaker turn, supplemented by speaker-level metadata, including biographical and demographic details (Rozas et al. 2023) and ideology scores (Fábrega 2022). I also coded variables capturing delegates’ participation in the Convention’s provisional, thematic, and voluntary commissions, and their service on its executive committee.

For Cuba, the absence of official transcripts required producing my own. The post-consultation debates of the National Assembly, held from December 20–22, 2018, were broadcast via Facebook livestream by *Cubadebate*, a state-run media platform. I collected these broadcasts and transcribed them using *WhisperX*, an automatic speech recognition (ASR) system for long-form audio that also performs speaker diarization (Bain et al. 2023; Radford et al. 2023). The transcripts span a total of three sessions, 265 speaker turns, and 73,276 words. The structure of the Cuban transcripts is virtually the same as the Chilean transcripts; each row corresponds to a speaker turn. Metadata for each speaker includes biographical and demographic information sourced from [Proyecto Inventario](#). I also created three binary variables to indicate whether a speaker was a member of the Central Committee of the Communist Party of Cuba (PCC), the Politburo of the PCC, or the Drafting Commission responsible for preparing the constitutional text. To my knowledge, this is the first systematic record of the Cuban constitutional debates.

1. Sessions 1–30 were excluded; substantive constitutional debates began with Session 31, after the General Regulations were published on October 13, 2021.

4.3 Methodology

I develop an LLM-assisted coding pipeline to identify invocations of public consultation and classify each by rhetorical function (descriptive reference, process evaluation, or substantive deployment) and valence (positive, negative, or mixed). Recent benchmarking work establishes LLMs as a credible method for annotating political text, matching or exceeding crowd workers, research assistants, and experts across mono- or multi-lingual settings Gilardi et al. (2023) and Törnberg (2025). Aggregate performance gains do not eliminate the need for task-specific validation, however (Pangakis et al. 2023). The present methodology leverages LLM classification at scale while subjecting outputs to a multi-layer validation protocol.

The pipeline uses [Claude Opus 4.6](#) as the model, accessed via the Anthropic API between April 14 and April 16, 2026. Temperature is set to zero for near-deterministic output; reproducibility is further supported by the version-pinned codebook. My codebook follows guidance from Halterman and Keith (2026) on supervised instruction-tuning for measuring political science concepts. For each rhetorical function and valence option, the codebook provides a definition along with positive and negative examples, which has been shown to improve zero-shot performance (Wang et al. 2023).

Here, the unit of observation is the speaker turn, or the input the classifier receives. The unit of analysis is the invocation, or a discrete reference to formal public consultation within a turn. A single turn may contain zero, one, or multiple invocations, each coded independently. Public input is defined as feedback, preferences, and demands formally solicited from the general public — individual citizens or organized groups — through mechanisms established by a country’s standing regime during a process of public consultation (Martin 2025b, 4). An invocation of public consultation, as coded here, encompasses references to both this substantive input *and* the consultation process itself — the institutional mechanisms through which input was gathered in each country. The codebook excludes references to general popular mandate, electoral mandate, media coverage, and personal communications.

Each invocation is classified along two dimensions. Rhetorical function captures what the invocation does: Descriptive Reference (factual reporting), Process Evaluation (assessing the consultation process itself), or Substantive Deployment (using consultation to support, oppose, or warrant a position). The three function categories are mutually exclusive at the invocation level. Valence (positive, negative, or mixed) is coded for Process Evaluation and Substantive Deployment but not for Descriptive Reference, which is by

definition non-evaluative. Mixed is reserved for ambivalence within the invocation, not coder uncertainty. Table 1 summarizes the scheme. Invocation boundaries are determined by rhetorical move rather than sentence breaks. A continuous discussion in service of one rhetorical function is one invocation, and a return to consultation after intervening material is a new one.

Table 1: Coding Scheme for Rhetorical Function and Valence

Category	Definition	Valence
Descriptive Reference	Factual reporting of consultation activities, results, or procedures without evaluation, argumentation, or deployment.	N/A
Process Evaluation	Assessing the quality, legitimacy, representativeness, or effectiveness of consultation mechanisms themselves.	Positive / Negative / Mixed
Substantive Deployment	Using the content of public input to support, oppose, or warrant specific provisions, procedural decisions, or topics.	Positive / Negative / Mixed

I validate classifier outputs through a four-layer protocol targeting distinct failure modes. A schema and substring check verifies JSON conformance and that each excerpt appears verbatim in the source turn, guarding against malformed outputs and hallucinations (Xu et al. 2025). A stratified blind audit of 243 invocations (150 from Chile, 93 from Cuba) across 10 populated country $\times$ function-valence cells (Törnberg 2024) yielded precision of 96.7–98.9% and full function-valence agreement of 92.0–94.6% against my hand-coding. A lexical recall floor applying codebook search terms to all predicted-negative turns (Pangakis et al. 2023) confirmed keyword-bounded recall above 99% in both corpora. Three canonical-prompt runs and one paraphrased-prompt run at temperature zero (Abdurahman et al. 2025) produced Krippendorff’s $\alpha > 0.91$ for binary detection and both classification fields in both corpora, above the standard 0.80 reliability threshold (Krippendorff 2019). See Appendix for full validation results.

A paper analyzing how elites selectively invoke evidence to suit their commitments has reason to be *especially* transparent about its own analytical choices. Every classification carries a logged rationale, the audit trail is reproducible, and the codebook is versioned and publicly available. The pipeline also takes a position between warnings against over-reliance on one-shot LLM outputs (Ollion et al. 2024) and out-

right rejection of generative AI for interpretive work (Jowsey et al. 2025). The iterative auditing protocol addresses the first concern, and human expertise “guiding the acceptance, rejection, or refinement of model output within theoretical, contextual, and ethical boundaries” (Friese et al. 2026, 3) addresses the second. This work contributes to an emergent literature applying LLM classification to long-form text (Heseltine and Clemm von Hohenberg 2024; Mochtak et al. 2025; Pungeršek et al. 2026), where most computational political science focuses on short-form genres.

4.4 Case studies

This study employs a “parallel demonstration of theory” approach (Skocpol and Somers 1980; Chernykh and Elkins 2022) to theorize how cherry-picking operates across divergent cases. Chile (2021–22) and Cuba (2018–19) represent ideal types of democratic and authoritarian constitution-making, contrasting sharply in political competition (Dahl 1971). They also exemplify the originating-coalition distinction above. Chile’s Convention approximates a minoritarian configuration, with interpretive authority distributed across competing blocs; Cuba’s National Assembly approximates a majoritarian one, with such authority concentrated in a small set of authorized actors.

4.4.1 Chile

The 1980 Chilean Constitution, drafted by General Augusto Pinochet’s military regime, entrenched hyper-presidentialism and an exclusionary institutional framework (Barros 2002; Ruiz-Tagle 2021). Structural constraints persisted through the democratic transition in 1990 and major amendments in 2005, limiting deeper democratization (Couso and Coddou 2010; Heiss 2017; Atria 2013). By the 2010s, Chile was mired in a crisis of representation, marked by declining trust in institutions and mounting frustration with traditional elites (Couso 2011; Luna 2016; Siavelis 2016).

This discontent erupted in October 2019, when massive protests over inequality and public service failures known as the *estallido social* caught political elites by surprise (Ansaldi and Pardo-Vergara 2020; Heiss 2021; Morales Quiroga 2020). In response, most political parties signed the “Agreement for Social Peace and the New Constitution” on November 15, committing to a participatory drafting process. The 2020 entry referendum showed overwhelming support: 78.3% voted for a new constitution, 79% for a Constitutional Convention. The 2021 elections yielded an unexpected victory for independents and the left (Barandiaran and Partridge 2025; García-Huidobro 2024). The 155-member Convention introduced unprecedented insti-

tutional innovations, including gender parity and 17 reserved seats for Indigenous delegates (Heiss 2021; Ríos Tobar 2021; Suarez-Cao 2021).

During the rules of procedure phase, the Convention approved one framework for general participatory mechanisms and another for Indigenous consultation. The former established tools such as popular norm initiatives (IPNs), self-convened meetings, public hearings, and territorial weeks. These rules mandated the design, processing, and return of consultation results (Convención Constitucional de Chile 2021). Over one million Chileans registered on the digital platform to participate (Delamaza 2024, 110). The Convention held 1,719 public hearings (131–132) and received 6,105 IPNs, of which 77 exceeded the 15,000-signature threshold across four regions and were debated formally (165–166). Systematizing this input while drafting the text within a year posed immense logistical and deliberative challenges (Martin 2025a, 2026).

Despite the Convention’s ambitious participatory procedures, the final draft was criticized for its length, ideological breadth, and lack of institutional clarity (Fuentes 2023; Larrain et al. 2023; Noguera Fernández 2023). In the 2022 exit referendum, voters rejected the draft by a wide margin: 62% against, 38% in favor. Chile thus joined the 6% of global constitutional processes whose draft was rejected in a referendum (Elkins and Hudson 2019, 2022).

4.4.2 Cuba

The 1976 Cuban Constitution, drafted under Fidel Castro’s leadership, codified a single-party socialist state and centralized economic model (Klein 1978). In the 2010s, President Raúl Castro introduced socioeconomic reforms to address the inefficiencies of the planned economy amid global pressures, expanding the private sector (Mesa-Lago and Pérez-López 2013; Yaffe 2020). Leadership transition followed, culminating in Miguel Díaz-Canel’s rise to the presidency in 2018 and later to First Secretary of the Communist Party in 2021. The new constitution aimed to institutionalize Raúl Castro’s reforms, with Fidel’s tacit approval.

In June 2018, the National Assembly established the “Commission to Draft the Constitutional Proposal for the Republic” (hereinafter “Drafting Commission”). A month later, it unanimously approved the draft, launching a “popular consultation” (August 13–November 15, 2018) organized by the Communist Party and affiliated groups (Granma 2018). Meetings were held nationwide in neighborhoods, workplaces, schools, hospitals, and among Cubans abroad (Backer and Sapio 2019; Welp 2021). Official data reported 133,681 meetings and 8.9 million participants (Doimeadios Guerrero and Francisco 2018), though the latter figure

exceeded the electoral register by over 240,000 (Chaguaceda and Viera Cañive 2021).

The meetings were loosely structured; facilitators presented the draft and moderated open discussions (Backer and Sapio 2019). While participants could propose changes, there were no clear guidelines, leaving uncertainty about how feedback would be evaluated (Alianza Regional por la Libertad de Expresión e Información 2019). Despite tight political control, discussions were unexpectedly vibrant, touching on topics such as same-sex marriage, presidential elections, and private property (Bui 2020).

The government reported that the consultation generated over 1.7 million comments, including 783,174 proposals, 666,995 adjustments, and 38,482 clarification requests (Granma 2019). Based on this input, the National Processing Team produced over 10,000 proposals (Doimeadios Guerrero and Francisco 2018). The Drafting Commission ultimately incorporated 760 changes to the text (Granma 2019), a headline figure suggesting an “impactful outcome” (Bui 2020, 254) that the transcripts complicate, as I show below.

After its unanimous approval by the National Assembly on December 22, 2018, the final draft faced minimal opposition before the exit referendum. On February 24, 2019, the new constitution was approved by 86.85% of voters with a reported turnout of 90.15% (Asamblea Nacional del Poder Popular 2019). However, these results were widely questioned, given the government’s aggressive pro-approval campaign and the 706,400 Cubans who voted against the text.

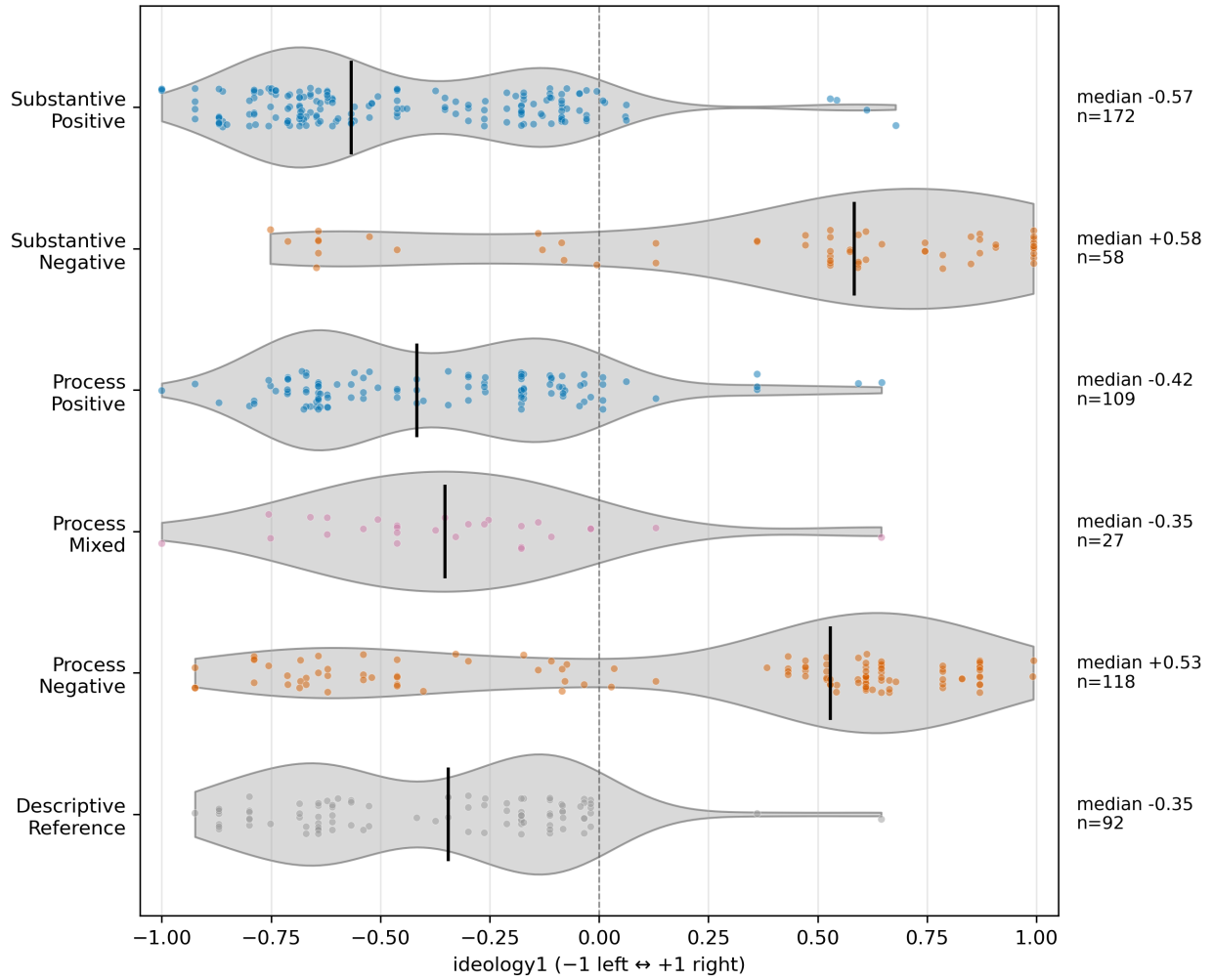
5 Results

5.1 Cherry-picking in Chile

Members of the Constitutional Convention invoked public consultation 579 times across the 80 plenary sessions analyzed here. Process Evaluation accounts for 256 invocations (44.2%), of which 111 are Positive, 118 Negative, and 27 Mixed. Substantive Deployment accounts for 231 invocations (39.9%), of which 173 are Positive and 58 Negative. Descriptive References, which carry no valence, account for the remaining 92 invocations (15.9%). The valence balance differs sharply across the two evaluative functions. Substantive Deployment runs roughly 3:1 Positive over Negative (173:58), whereas Process Evaluation splits nearly evenly (111:118). Evaluative invocations dominate the corpus.

Within each rhetorical function, Positive and Negative invocations come from systematically different parts of the ideological spectrum. Figure 1 displays the distributions. Among Substantive Deployments, the median ideology score is -0.567 for Positives and $+0.583$ for Negatives; among Process Evaluations,

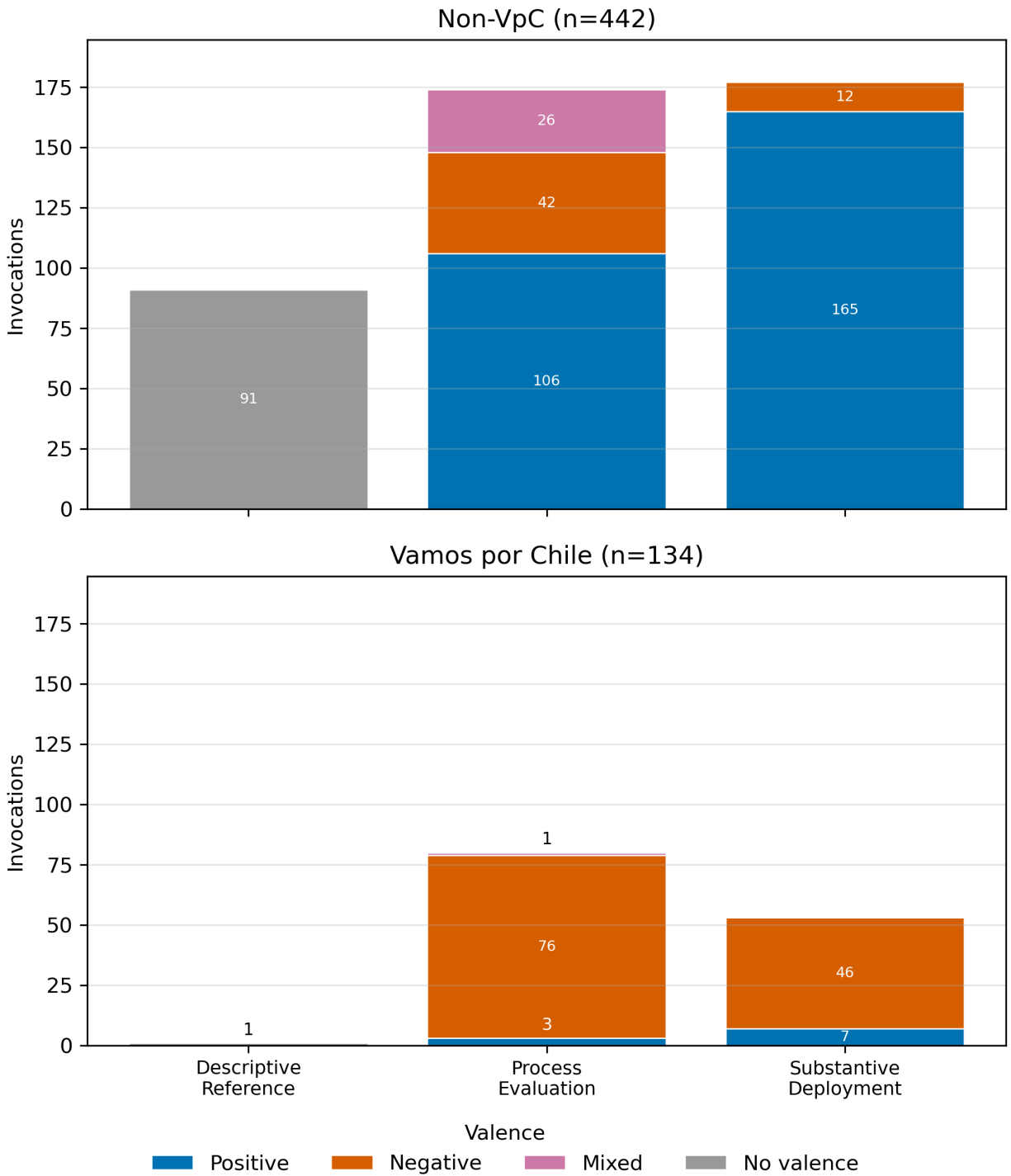
Figure 1: Ideology Distribution by Public Input Category



−0.402 for Positives and +0.528 for Negatives. Mann-Whitney U tests reject the null of a shared distribution at $p < 0.001$ for both functions, with the cleavage somewhat sharper for Substantive Deployment. Descriptive References, by contrast, cluster on the left (median −0.346) and are produced almost entirely by non-VpC delegates (91 of 92).

The two blocs deploy consultation in diametrically opposed directions. Figure 2 displays the function-by-valence distribution split by bloc. Of the 132 valenced invocations VpC delegates produced, 92.4% are Negative; of the 328 valenced invocations non-VpC delegates produced, only 16.5% are. Conditional on producing a valenced invocation, a VpC delegate is roughly sixty-two times more likely than a non-VpC

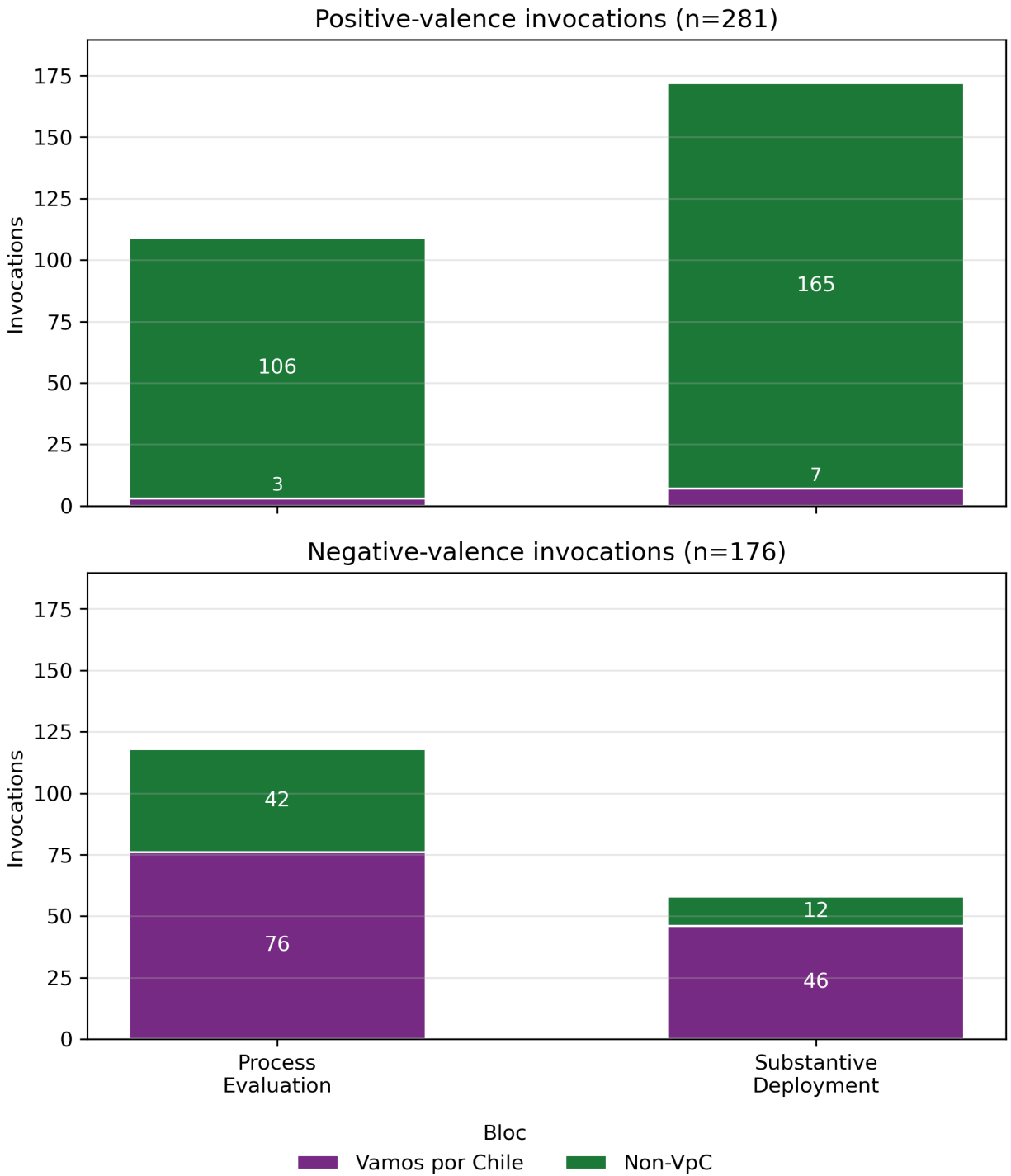
Figure 2: Rhetorical Function $\times$ Valence by Political Bloc



delegate to produce a Negative one (Fisher's exact OR = 61.9, $p < 0.001$).²

2. A permutation test on the same contingency returns the same conclusion. Across 10,000 simulated reassignments

Figure 3: Source breakdown of Positive and Negative Invocations



of valence labels, none produced a VpC Negative count as high as the observed value of 122 (expected under the null: ≈ 50). Bootstrap 95% confidence intervals on the underlying rates do not overlap, with the VpC Negative rate at

Figure 3 displays the mirror asymmetry on the Positive side, where non-VpC delegates produced 96.5% of all Positives. Notably, the bloc effect is not reducible to the continuous ideology gradient. In invocation-level logistic regressions of valence on speaker characteristics, VpC bloc membership predicts Negative invocation above and beyond the ideology score. Pseudo- R^2 rises from 0.379 for ideology alone to 0.433 for VpC alone, but only to 0.443 when both are included; the gain from adding VpC to the ideology-only model is roughly six times the gain from adding ideology to the VpC-only model.³ Cherry-picking in the Convention was organized around bloc membership specifically, not as a smooth function of left-right ideology.

The bloc concentration sharpens as one moves from the Convention's full speaking population to the subsets producing each valence. VpC's share of Negatives rises monotonically across these stages, from 23.7% of speakers to 24.8% of invokers to 46.8% of Negative producers. The funnel runs in parallel for non-VpC delegates, who make up 76.3% of speakers, 75.2% of invokers, and 91.2% of Positive producers. The two functions carry this asymmetry differently. VpC's Negatives concentrate in Process Evaluation (76 of 122, or 62.3%), while non-VpC's Positives concentrate in Substantive Deployment (166 of 274, or 60.6%). Yet within each function, the bloc cleavage runs sharper in Substantive Deployment, where 86.8% of VpC's Substantive Deployments are Negative against just 6.7% of non-VpC's — a thirteen-fold within-bloc rate ratio compared with roughly threefold for Process Evaluation. In short, the right deploys consultation primarily to discredit the process; the left, to warrant the substance.

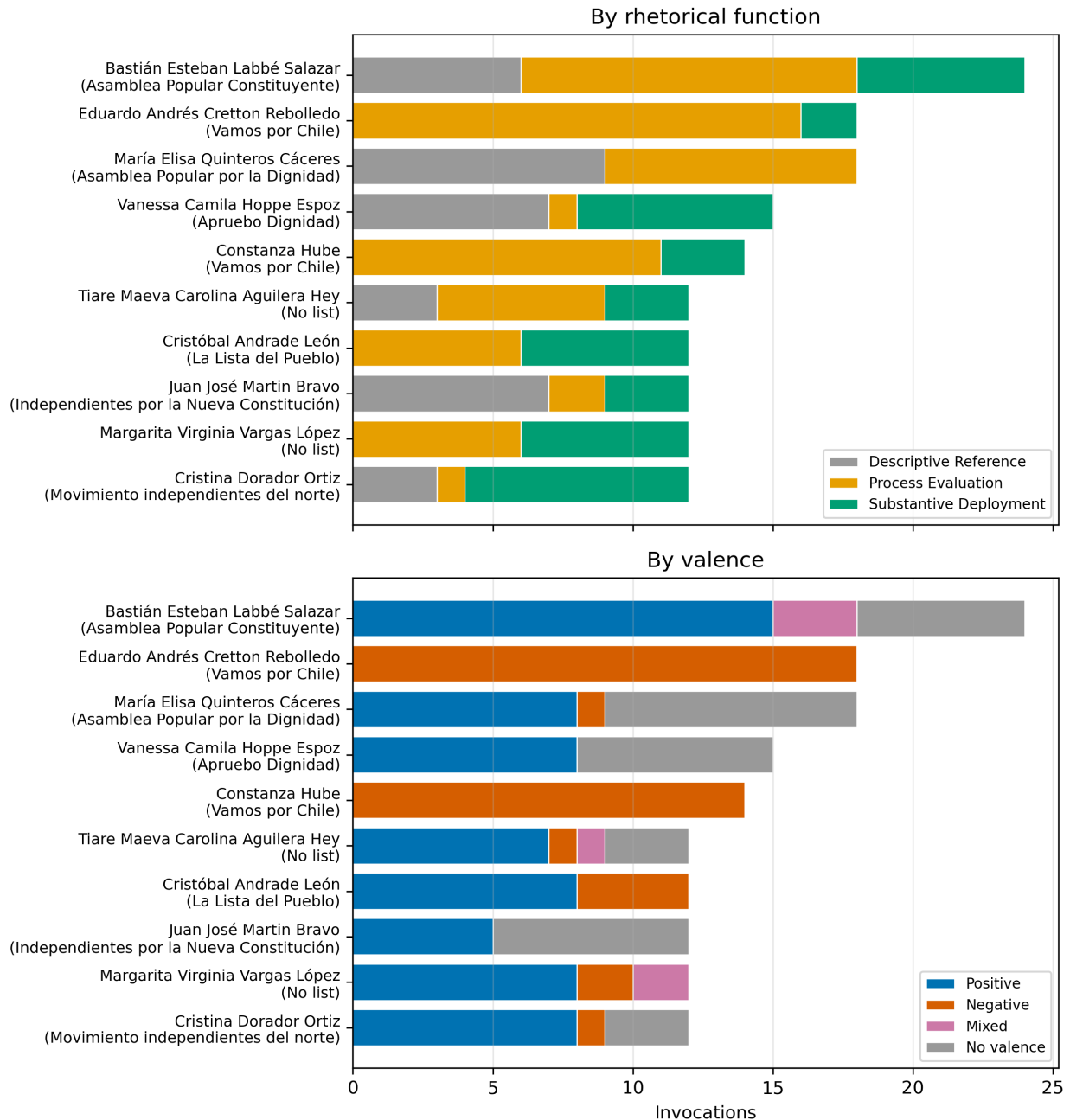
Figure 4 displays the ten most active invokers, stacked by rhetorical function and valence. The list is politically mixed. It is led by the Participation Commission's coordinator Bastián Labbé (24 invocations, 15 Positive, 3 Mixed, 6 Neutral), includes the Convention's second president and indigenous reserved-seat delegates, and counts among its members VpC's most prolific Negative invoker, Eduardo Cretton (18 invocations, all Negative). The valence panel reveals what the function panel does not. Political diversity in the top-by-volume list does not translate to rhetorical diversity. Each delegate's invocations cluster sharply toward one valence. VpC delegates' bars are dominated by Negative, non-VpC delegates' by Positive.

Each bloc has a signature cherry-picking move: the left in Substantive Deployment / Positive, using

[87.9%, 96.2%] and the non-VpC Negative rate at [12.5%, 20.7%].

3. All model specifications cluster standard errors by speaker and control for turn length, leadership status, and participation-commission membership. Because $P(\text{Positive}) = 1 - P(\text{Negative})$ within the valenced subset, the same logits describe the mirror story by construction, with non-VpC bloc membership predicting Positive invocation above and beyond the ideology score and identical pseudo- R^2 values.

Figure 4: Concentration of Invocations Across Delegates



consultation content to warrant preferred reforms, and the right in Process Evaluation / Negative, attacking the consultation's design and execution. These are the diagonal cells of the function-by-valence grid, and together they account for the majority of each bloc's valenced output (60.6% of non-VpC Positives; 62.3% of VpC Negatives). The remaining cells fill in each bloc's secondary register, with the supermajority also

defending the process directly (Process Evaluation / Positive) and the minority also dismissing substantive demands (Substantive Deployment / Negative). The vignettes below provide illustrative examples of each cell.

Among the left-wing supermajority, public consultation served above all to expand the constitutional agenda and to underwrite specific provisions. This reflected a broader “re-foundational” constitutional vision (Barandiaran and Partridge 2025; Montes 2022; Von Bogdandy 2023) in which consultation was framed as a legitimating force. Delegates frequently grounded their arguments in anecdotes drawn from local consultation events, framing them as direct calls to action. The rhetorical move humanized public input and created emotional resonance around specific proposals. As one delegate from *La Lista del Pueblo* recounted:

I have put a great deal of energy into holding *cabildos* with young people from District 26. Many of them will not vote in this exit plebiscite, but they will live with whatever emerges from this Convention. In all of these town halls, they raised the need for comprehensive sexual education. A young woman in Quinchao told me: “Adriana, if a Constitution is not written that includes comprehensive sexual education, then all the young women in this country are at serious risk, because their male peers need to learn about consent and respect.” Her words have stayed with me to this day. (Adriana Ampuero, Session 68 Plenario, row 143)

Ampuero’s statement illustrates how delegates framed public input as a direct mandate for constitutional inclusion. By grounding her argument in voices from *cabildos*, she elevated sexual education as a demand not yet central to the debate. Such Substantive Deployment / Positive references show how the supermajority used public input to expand the scope of deliberation.

Other delegates deployed consultation more instrumentally to defend specific articles. This pattern was especially visible in debates over social rights, where popular norm initiatives were repeatedly cited as evidence of broad public backing for progressive reforms. As one member of *Apruebo Dignidad* argued during the debate on the right to housing:

At this moment I want to call for approval of the norm originating from the popular initiative on the right to housing, the social function of land, and the social production of habitat. ... It had 22,000 signatures of support, built through town halls, assemblies, and popular organization.

The organized people who present this proposal and uphold this demand are the mobilized and organized people who will fight to win the *Apruebo* at the exit plebiscite. (Manuela Royo, Session 85 Plenario, row 211)

By naming the 22,000 signatories as “the organized people,” Royo transformed a signature count into a collective political subject whose demand for the right to housing carried moral as well as numerical weight. The framing also bound the IPN to the broader *Apruebo* campaign, locating the Convention’s choice within an electoral horizon where the same constituency would shortly cast judgment. Substantive Deployment / Positive organizes most of the supermajority’s valenced speech precisely because it accommodates this kind of move, where consultation content is portrayed as the voice the Convention is bound to heed.

The right-wing minority often drew on the same evidentiary form — initiatives by name, with signature counts — but pointed it in the opposite direction. From early on, members of *Vamos por Chile* and some centrists⁴ framed the consultation process as selectively applied. These critiques sharpened around popular norm initiatives (IPNs). Of the 77 initiatives that surpassed the 15,000-signature threshold, several of the most widely supported were rejected outright:

I ask: of those million people, how many were actually heard in this Convention, when so many of the most-supported norms were rejected? Where is the majority opinion of the citizenry reflected here? They said no to “Con Mi Plata No,” a popular initiative submitted with more than 60,000 supporters; to the initiative for the free right to private property, with more than 47,000 supporters; they said no to “Victims First,” with more than 26,000 supporters; to Freedom of Entrepreneurship, the Multi-Union of Entrepreneurs; to Free and Diverse Education; and to a big, big, big, etcetera. (Katerine Montealegre, Session 78 Plenario, row 136)

Montealegre’s remarks captured the central opposition argument that public input was embraced when it supported the supermajority’s agenda but dismissed when it did not. The speech illustrates Substantive Deployment / Negative, with consultation content cited to oppose the supermajority’s choices by stacking signature counts as evidence that the Convention had disregarded the citizens it claimed to represent. The cell accounts for 86.8% of VpC’s Substantive Deployments against just 6.7% of non-VpC’s, which is the sharpest within-bloc rate ratio in the corpus.

4. For example, Claudio Gómez from the *Lista del Apruebo* critiqued the rejection of *Con Mi Plata No* (Session 85 Plenario, row 129).

Among the supermajority, defense of the consultation took the form of outright praise for its reach and effectiveness, often built on summaries presented as evidence of citizen impact. María Elisa Quinteros, the Convention's second president, employed this register when she cited a press release from the Secretariat of Popular Participation on the outcomes of popular norm initiatives:

This entire norm-drafting process was open to citizen participation, from the hearings held by the various commissions to the indigenous consultation and the submission of popular norm initiatives. . . . After analyzing the deliberation and voting data . . . we can state that 49 percent of popular norm initiatives were fully or partially approved. Of the remaining 42 initiatives, they were rejected in general at the commission stage, with one declared inadmissible. Examining their content, it is possible to determine that 83 percent of them contained proposals, ideas, and norms that were approved by the Plenary of the Constitutional Convention and that therefore already form part of the draft of the new Constitution. In this way, 91.5 percent of the popular proposals discussed by this constituent body effectively shaped the norm debate.

(María Elisa Quinteros, Session 96 Plenario, row 2)

This “maximalist interpretation” (Dingemans Calderón 2023, 33) drew immediate criticism. Technicians from the Secretariat publicly contradicted the announcement, stating that the draft had been analyzed only in relation to rejected initiatives (Olivares 2022); Gonzalo Delamaza, the Secretariat's president, clarified that Quinteros's sweeping claim misrepresented the actual influence of public input on the final text. Quinteros framed her statement as factual reporting, but its rhetorical work was to affirm the consultation's effectiveness against growing skepticism in the closing months (Segovia and Toro 2022). As pressure mounted to demonstrate meaningful public impact, leaders defended the process via numbers, even where the numbers stretched the evidence.

For the right-wing minority, Process Evaluation / Negative was the dominant register — 76 of 122 valenced VpC invocations, more than any other cell in the entire grid for either bloc.⁵ These critiques targeted the consultation's design, scale, and timing rather than any particular substantive outcome. Felipe Mena, a *Vamos por Chile* member of the Commission on Popular Participation who had initially supported the consultation effort, issued a scathing late-stage assessment:

5. Non-VpC delegates produced 42 of 118 Process Evaluation Negatives (35.6%); the bloc cleavage in this cell is real but not absolute.

A formal notice has already been issued regarding the self-convened town halls and local gatherings, which had no impact. This very effort even tried to inflate the participant count, which did not exceed three thousand — even when adding in the one held under the previous government. Unfortunately, on top of this comes the national day of deliberation, which fails to meet the principles this Convention set for itself. This event is not consequential . . . and I doubt it will be efficient. What impact can it have on a text that already has nearly 400 articles and is practically finished? Is it appropriate to do this at the end of the process? Clearly not. (Felipe Mena, Session 97 Plenario, row 12)

Mena focuses on procedural shortcomings: too many mechanisms, too little time, no measurable impact on the text. His critique reflected broader concerns about the Convention's capacity to manage large-scale participation within a year and with limited resources, raising doubts about whether public input was meaningfully incorporated or merely symbolic.

Whereas Mena attacked the consultation in general terms, Eduardo Cretton — a member of the Commission on the Rights of Indigenous Peoples and Plurinationality and the most prolific Negative invoker in the corpus — concentrated on the indigenous consultation specifically:

We have warned you before and repeated it endlessly: for us this report has no validity whatsoever, because it comes from a poorly conducted indigenous consultation, in which less than one percent of the registry participated. For that reason, our caucus has decided not to vote on it, because we are not willing to validate a flawed process like this one. (Eduardo Cretton, Session 101 Plenario, row 95)

Unlike procedural critiques that called for improvements, Cretton's argument dismissed the consultation results entirely, claiming the indigenous process was so flawed it lacked democratic legitimacy. This reflects a broader pattern within *Vamos por Chile*, where right-wing delegates questioned not just how public input was gathered but whose voices counted. Cretton discarded the indigenous consultation as a statistically insignificant basis for constitutional norms, thus bolstering the broader opposition to plurinationalism.

Read together, the six excerpts make the diagonal asymmetry visible at the level of rhetoric. The supermajority used Substantive Deployment to build provisions on consultation content and Process Evaluation to defend the consultation itself; the right-wing minority used Substantive Deployment to oppose the super-

majority's choices and Process Evaluation to attack the mechanisms head-on. In other words, both blocs cherry-picked. They simply cherry-picked different things — the left, *what* consultation produced; the right, *how* it was produced.

5.2 Cherry-picking in Cuba

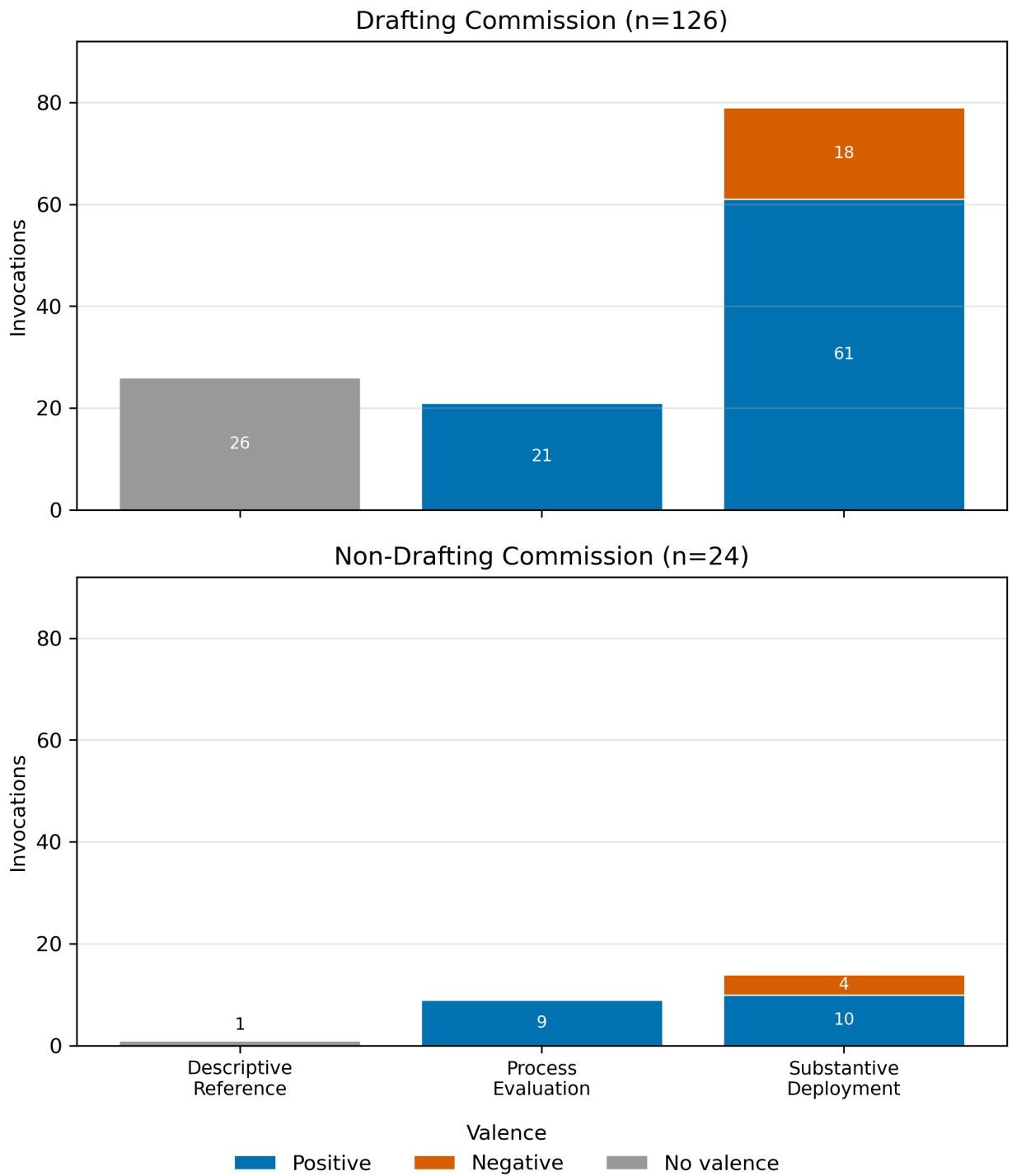
Deputies of the National Assembly invoked public consultation 150 times across the three plenary sessions analyzed here. Substantive Deployment is the dominant rhetorical function, accounting for 93 invocations (62.0%), with 71 Positive and 22 Negative. Process Evaluation accounts for a further 30 invocations (20.0%), every one of them Positive, meaning there are no Negative Process Evaluations in the Cuban corpus. The remaining 27 invocations (18.0%) are unvalenced Descriptive References. Across the 123 valenced invocations taken together, Positives outnumber Negatives roughly 4.6:1. The Cuban plenary registers unanimous endorsement of the consultation as a process and confines its dissent entirely to the substantive register.

As an autocracy, the Cuban case lacks the speaker-level ideology scores and competing voting blocs that organize the Chilean data. The relevant institutional cleavage is instead between the 33-member Drafting Commission (DC) and the rest of the assembly. The DC holds 5.5% of the 605 deputy seats but produced 126 of the 150 invocations (84.0%). Among the nine commissioners who invoked public input, five sat on the PCC Central Committee and two on the Politburo.

Figure 5 displays the function-by-valence distribution split by group. Three important patterns emerge. First, neither DC nor non-DC speakers produce a single Negative Process Evaluation, meaning this function is reserved exclusively for endorsement of the consultation as a procedure, regardless of who does the endorsing. Second, both groups concentrate their invocations in Substantive Deployment, though DC does so to a slightly greater degree (63%) than non-DC (58.3%). Third, and most consequentially for the cherry-picking question, the marginal Negative rates are statistically indistinguishable. DC speakers produced 18 of 100 valenced invocations as Negative (18.0%); non-DC speakers produced 4 of 23 (17.4%). Fisher's exact test on this contingency yields an odds ratio of 1.04 ($p = 1.000$).

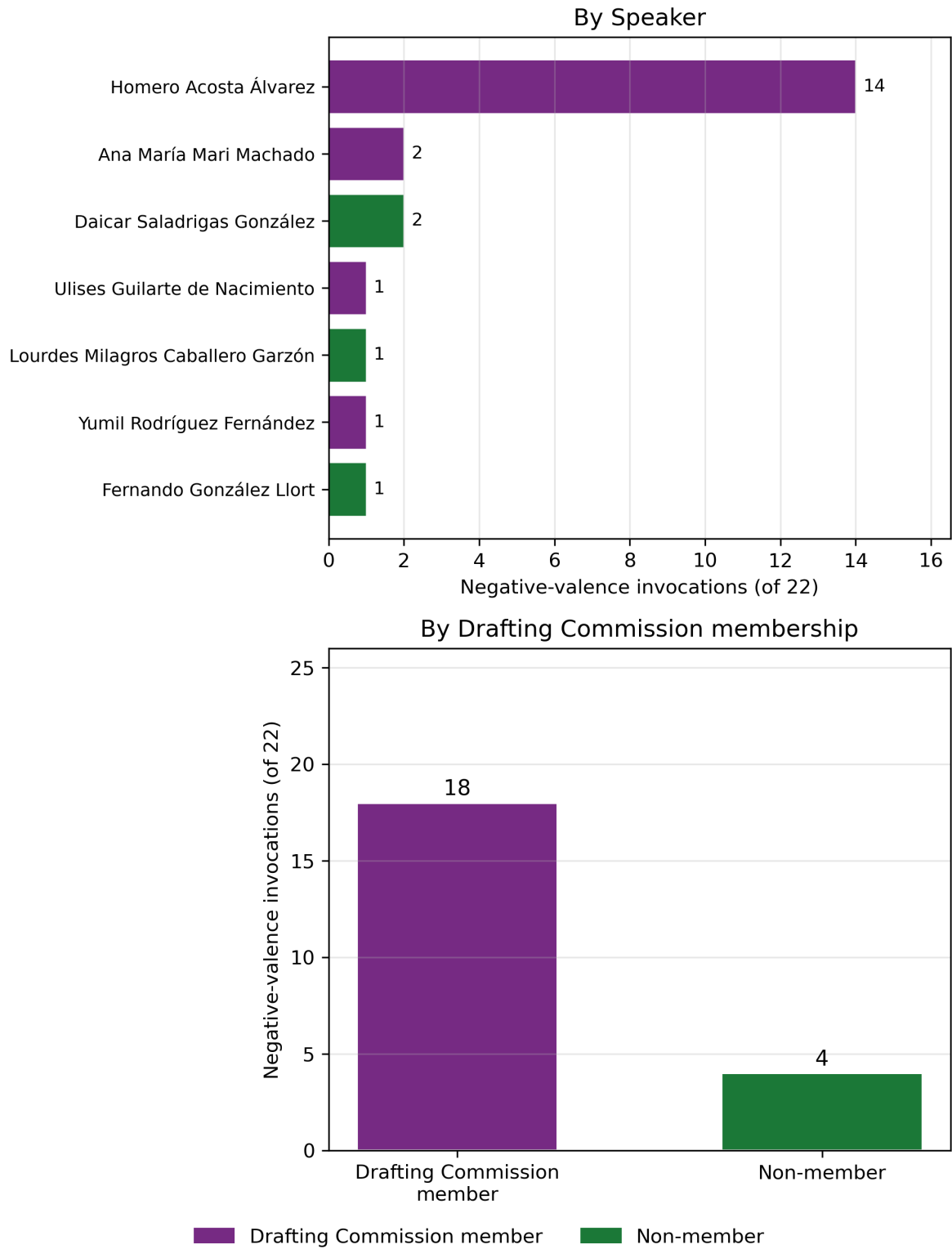
The DC's apparent dominance of the Negative column in Figure 6 is largely the work of one speaker. Homero Acosta Álvarez, then Secretary of the Council of State and the Drafting Commission's central floor manager, produced 79 of the 150 invocations in the corpus (52.7%) and 14 of its 22 Negatives. Conditional on his 50.4% of valenced speech, his Negative count is statistically indistinguishable from chance (expected:

Figure 5: Function $\times$ Valence, Drafting Commission (DC) vs. non-DC



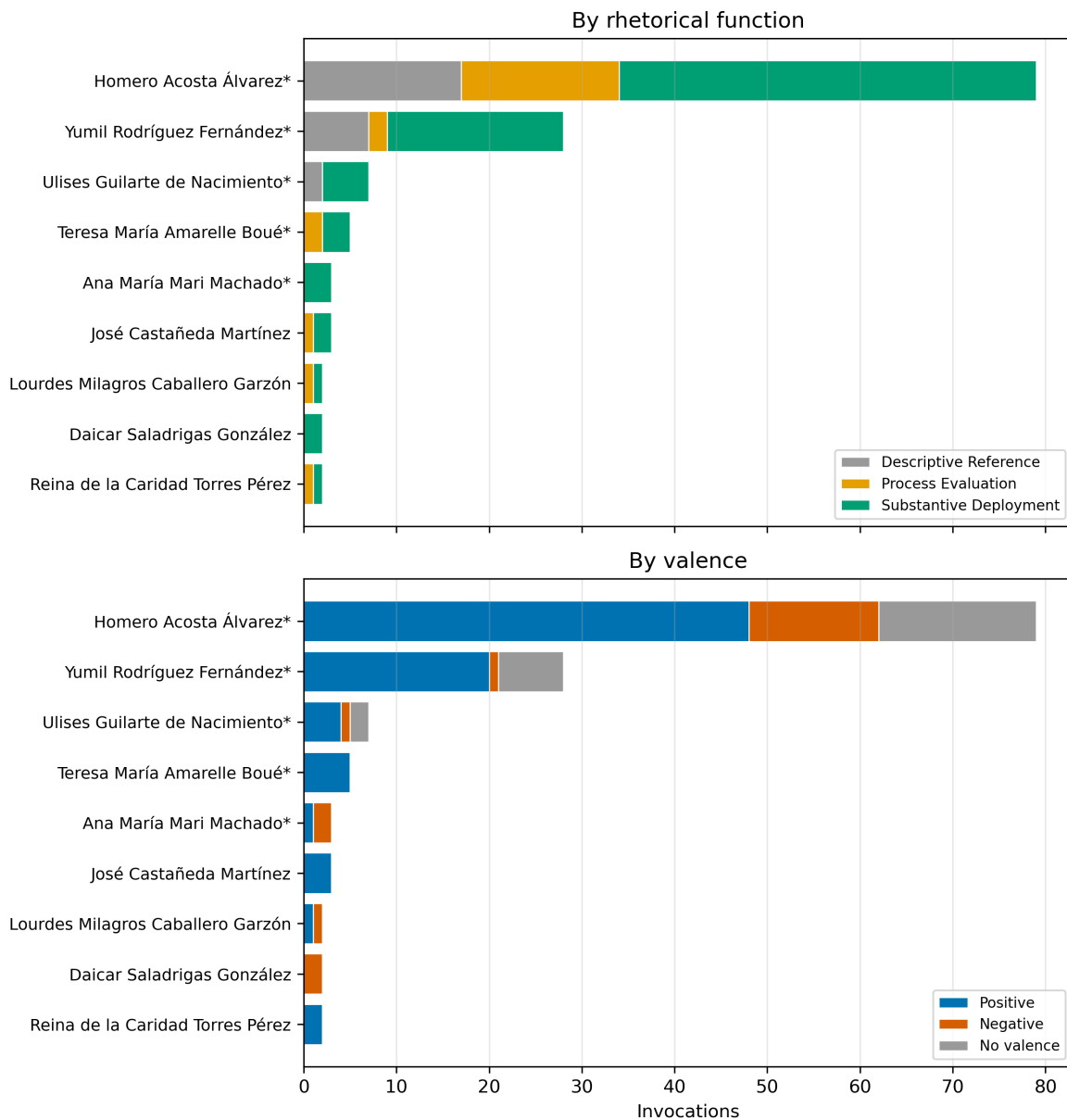
11.09; two-sided permutation $p = 0.242$). Among non-Acosta DC speakers, the Negative rate falls to 10.5% (4 of 38), below the non-DC rate.

Figure 6: Source breakdown of Negative Invocations



Per-turn invocation propensity does not track leadership status either. In a turn-level logistic regression on the 261 deputy turns ($n = 70$ speakers with cluster-robust standard errors), log turn duration is the main predictor of invocation (OR = 5.03, $p < 0.001$), while DC membership (OR = 1.31, $p = 0.625$) and Central Committee membership (OR = 0.80, $p = 0.759$) do not approach significance. What distinguishes Acosta and the small core of DC speakers is the sheer volume of their speech. Acosta alone delivered three hours and 43 minutes of floor speech across 104 turns, more than three times the floor time of any other deputy.

Figure 7: Concentration of Invocations Across Deputies (≥ 2 invocations)



* Member of the Drafting Commission

Figure 7 shows the same pattern from a different angle. Four of the five most prolific invokers sit on the Drafting Commission. Acosta's 14 Negatives sit alongside 65 non-Negative invocations of his own, and the next four most prolific speakers — who produce 43 invocations between them — contribute only two Negatives in total. These results show a small institutionally homogeneous core producing predominantly Positive invocations, with the rare Negative concentrated in the highest-volume speaker because he produces the most invocations of every kind.

The cherry-picking pattern in Cuba is therefore structural, embedded in *who is permitted to speak* in the first place. Of the 605 deputies in the Assembly at the time, only 70 (11.6%) spoke in the debate, only 27 (4.5%) produced any invocation of the consultation, and only 7 (1.2%) produced any Negative invocation. The composition of these nested groups shifts monotonically toward leadership status: the Drafting Commission's share climbs from 5.5% of seats in the full assembly to 25.7% of the speaking subset, 33.3% of the invoking subset, and 57.1% of Negative producers. Central Committee membership rises from 13.1% assembly-wide to 42.9% among Negative producers. Of the seven deputies who produced any Negative invocation, all are PCC members and all hold superior education degrees, against assembly base rates of 90.7% and 86.0%. The speaking population is itself the product of a prior selection that concentrates the floor in the drafting elite, and the rhetorical work of cherry-picking is largely complete before any deputy takes the floor.

The function-by-valence grid populates only four of seven cells in the Cuban corpus. Process Evaluation / Positive and Substantive Deployment / Positive together hold 101 of 150 invocations; Descriptive Reference, drawn from Acosta's catalog, holds 27 more. The remaining 22 are Substantive Deployment / Negative, 18 from within the Drafting Commission (14 by Acosta alone). The empty cells, Process Evaluation / Negative and Process Evaluation / Mixed, are themselves a finding. No Cuban deputy criticizes the consultation as such.

The triumphalist register of the National Assembly's debates opened with Acosta's celebration of the consultation's scale and inclusivity. He claimed that only 3% of participants expressed negative views of the draft text without explaining how the figure was derived (Acosta, 21 December 2018, row 2), then passed immediately into a sweeping endorsement of the consultation:

In general, the population — our entire people — has reiterated on countless occasions, both during the consultation process and in various other settings, their praise for the democratic

character of this *consulta popular*. I mentioned the uniqueness of this process — and we say this without vanity, we say it with humility, but we must reiterate it. It is a singular process that does not exist or take place anywhere else in this world: a process where a people is convened, where a people is listened to, where the opinion of a people is heard on a constitutional project. And not only is it heard — the opinion of the people is also taken into account. (Homero Acosta, 21 December 2018, row 2)

By equating the “immense majority” support for the consultation (Acosta, 21 December 2018, row 2) with endorsement of the Cuban Revolution and its leadership, Acosta reduced public engagement to affirmation of the party-state. The framing was later reinforced by repeated references to the people’s commitment to the *perfeccionamiento* (“perfection”) of the socialist system. These claims followed a familiar pattern of Cuban consultation rhetoric, with vague, generalized assertions and little transparency about how aggregate figures were calculated (Viera Cañive et al. 2022). The constitutional consultation, though the most extensive to date, adhered to the same template, reporting headline numbers while the *actas* (“meeting minutes”) were never made public.

Acosta also operated in a quieter register across long stretches of the 21 December session, walking through the articles that drew the most consultation comments in a mode the typology classifies as Descriptive Reference. Though rhetorically subdued, the cataloging contained Acosta’s most candid acknowledgment of measurement limits, tucked into a parenthetical within his review of the public response to the question of same-sex marriage:

In the way the consultation was conducted, people were never asked to give their approval of what was in the text. Therefore, there is always a zone of doubt — a zone in which there is no absolute certainty as to how much support a given article enjoys, because no vote was taken on whether people were in favor of or against any particular article. That was how it was processed. And so the only people recorded here are those who expressed opposition to a given article. There are also many people who held a different opinion, or who held a similar one and likewise did not express it ... So, as I say, there is always a zone in which a certain empiricism remains as to how far that opinion extends within the population that participated in the *consulta popular*. (Homero Acosta, 21 December 2018, row 3)

Acosta conceded the consultation's methodological limits to justify deferring polarizing issues, framing further consultation as necessary and the absence of explicit dissent as ambiguous between consent and disinterest.

The corpus's most populous cell deploys consultation content to warrant specific decisions. The clearest case is the same-sex marriage deferral. The draft constitution had initially redefined marriage as "between two people" (Article 68), departing from the 1976 Constitution, but pressure from a coordinated evangelical counter-campaign (Augustin 2019) combined with vocal opposition during consultation meetings prompted the leadership to withdraw the provision and defer the issue to the subsequent Family Code. Acosta acknowledged that marriage generated 192,408 comments, 24.57% of all input, with 82.3% favoring the traditional definition (21 December 2018, row 3). Teresa María Amarelle Boué, a Politburo member and member of the Drafting Commission, explained the decision:

I believe that, in the end, we have achieved a great deal, and we thank everyone who expressed their opinions during the *consulta popular* — that 24%. I also believe we must thank them for transparently sharing their views during the consultation, because that reflects their feelings and perspectives, even if perhaps the majority of us do not agree. ... We have captured the sentiment of the population, and we now know how people think, allowing us to adjust all the public policies that need adjustment, and above all the work of consciousness-raising. (Teresa María Amarelle Boué, 20 December 2018, row 50)

Amarelle deployed the 24% figure to warrant the substantive decision, recasting the leadership's response as a strategic deferral to the Family Code. The move mirrors consultation practices in other authoritarian settings, where input gauges opinion without yielding decision-making authority (He 2006; Owen 2020), allowing the leadership to retain control over the pace of social change. The caution also reflected the regime's fragility under new leadership, where a significant "no" vote could have created space for political dissent.

Beyond same-sex marriage, the "engine room" (Gargarella 2013) of the Cuban draft, or the framework for political power, was largely insulated from consultation-based debate. Core structures such as the role of the Communist Party as the *partido único* ("single party") were not the subject of substantive debate. The engine-room questions that did surface were handled in ways that reaffirmed rather than reopened them, as

in Reina de la Caridad Torres Pérez's intervention against an independent survey by the platform Cubadata:

As we carried out our process of popular consultation, the *Nuevo Herald* and sites like Cubanet were also publishing the results of parallel surveys conducted through mobile applications targeting Cubans who expressed their disagreement with — for example — having a single party, with the irrevocable character of socialism, or with the fact that the main form of property in our country was socialist. Unfortunately for them, they had to acknowledge that this survey had only reached around 1,612 people, even though their headlines proclaimed that 47% of the Cuban people disagreed with what we were analyzing, proposing, and ratifying in the Constitution itself. Nothing to do with the figures that you [Homero Acosta] so masterfully presented yesterday, which show, beyond the 62% favorable assessments, how in tune and how in agreement we are with what we are building. (Reina de la Caridad Torres Pérez, 22 December 2018, row 13)

Torres used the consultation's 62% favorable opinion figure as ammunition against the 47% counter-figure. This is Substantive Deployment / Positive deployed defensively, with consultation content used to defend the regime's framework against external critique. The figures do not quite line up. Cubadata's 47% measured disagreement with specific substantive provisions (the single party, irrevocable socialism, socialist property), while the 62% Torres counters with measured favorability toward the consultation process itself. Treating one as a rebuttal to the other folds process endorsement into substantive endorsement, letting the consultation's aggregate numbers do rhetorical work the underlying data cannot support.

All 22 Negative invocations in the corpus are Substantive Deployments. The clearest case is Ana María Mari Machado's rejection of direct presidential elections, where consultation input on a core power structure was acknowledged in volume and rejected on ideological grounds:

It would be useful to comment on something, given the number of opinions received during the *consulta popular* — opinions associated with various proposals, and put forward in different ways, calling for the direct election of the President of the Republic. ... On these arguments about being more or less democratic when it comes to the direct election of the president — look, we should all feel proud, men and women in Cuba, to have a very broad democratic experience in these 60 years of revolution. We also have the lived history of comparing what

elections were like before 1959, with those electoral party systems they so often urge us to adopt. Cuba already lived through that experience. (Ana María Mari Machado, 20 December 2018, row 61)

The passage exemplifies the leadership's strategy of acknowledging public input while rejecting results that threaten the party-state's framework. Mari Machado opened by noting the volume of consultation opinions favoring direct elections, the move that anchors the Substantive Deployment / Negative classification, then pivots into a broader redefinition of democracy, invoking Cuba's "60 years of revolution" and a "very broad democratic experience". By comparing direct elections to pre-1959 systems, she framed the demand as regressive rather than modernizing, deflecting substantive engagement while reaffirming the apparent superiority of the revolutionary model. The volume of public input was again acknowledged but the content dismissed as ideologically incompatible, consistent with how Acosta neutralized other inconvenient proposals across his 14 negative invocations.

Substantive Deployment / Negative is overwhelmingly a Drafting Commission register. The most consequential non-Commission Negative came from Daicar Saladrigas González, who used the consultation to propose removing the phrase *a las personas* ("to individuals") from Article 55 on freedom of the press, restricting the right to collective rather than individual ownership. She tied her amendment directly to consultation input:

My intervention concerns Article 55 on freedom of the press, drawn not only from personal criteria but above all from what we heard in the *consulta popular*. . . . We have the sense that this was one of the fundamental demands made during the consultation by the professional association, the Union of Journalists of Cuba — that the Constitution should state plainly that the fundamental media outlets in Cuba can belong only to the people. We therefore believe it would be preferable for the end of the article to read as follows — the fundamental media, as the article says, cannot be the object of any other type of property. (Daicar Saladrigas González, 22 December 2018, row 106)

Saladrigas embraces the consultation's input and frames the Union of Journalists' demand as authoritative. Yet she argued *against* Article 55 as drafted, using the consultation as warrant for that opposition. The episode is the only instance in the corpus of a non-Commission deputy using consultation to push for a non-

cosmetic change, and it was promptly rejected. Yailín Orta and Acosta both spoke against the amendment, defending the existing language as continuous with Cuba’s 1940 and 1976 constitutions; Acosta called the proposed change a “visible and significant step backward” (Acosta, 22 December 2018, row 109). The episode reveals how individual-rights framing serves the regime selectively, protecting the constitution’s democratic image when doing so deflects popular pressure for tighter ideological constraint.

In sum, these six excerpts show what a more concentrated form of cherry-picking looks like in practice. Two registers carry most of the work: regime celebration through the Process Evaluation / Positive set pieces, and decision validation through Substantive Deployment / Positive deployments to underwrite deferrals and deflect critiques. Negative invocations occupy a single cell, almost all produced by the Drafting Commission. The leadership produces the celebration, the catalog, the validations, and the rejections; the lone substantive non-Commission entry in the dissent column was rebuffed by Commission members. A curated process produces curated speech, and the result is a plenary register in which dissent is available to virtually no one.

6 Discussion

Public consultation provided the material at the center of constitutional debate in both Chile and Cuba. Rather than transmitting citizen preferences into the new social contract, however, it served as a discursive resource elites drew on to construct characterizations of “the people” aligned with their constitutional preferences. Invocations of public input were selectively marshaled, anchoring positions already held and discrediting those held by others. Where research shows that elites adopt consultation strategically based on the exigencies of the constitution-making moment (Martin 2025b), the present findings reveal a parallel logic at the level of plenary debate. The same calculus that shapes whether to consult also structures how its inputs are invoked once gathered.

How consultation was invoked, and by whom, varied markedly across the two cases, however. In Chile, both blocs of the Convention deployed consultation, but in countervailing registers. The left-wing supermajority used consultation content to warrant the reforms its constitutional vision required, and the right-wing minority concentrated its invocations on attacking the consultation’s design and execution. In large part, the left cherry-picked *what* the consultation produced, and the right *how* it was produced. In Cuba, by contrast, invocations concentrated overwhelmingly within the Drafting Commission, with non-commission

members' concerns sidelined. The Commission, and its floor manager Homero Acosta in particular, used consultation to defer politically sensitive provisions, deflect external counter-evidence, and reject reform demands that would have touched the party-state's framework. The remainder of the floor time was given over to celebration of the consultation's scale; no deputy outright criticized the consultation.

These two patterns instantiate distinct modes of cherry-picking, distinguished by how interpretive authority over consultation is distributed within the drafting body. In the *contested* mode, characteristic of minoritarian originating coalitions, interpretive authority is distributed across competing blocs, and cherry-picking operates through ideological sorting. Dominant blocs treat the consultation record as confirmatory of the reforms they pursue; oppositional blocs concentrate their challenges where the reform agenda exposes them most. Each bloc deploys consultation in its own register, as in Chile, and cherry-picking proceeds in parallel rather than being adjudicated across blocs. In the *concentrated* mode, characteristic of majoritarian originating coalitions, a small set of authorized interpreters controls how public input enters the record. Cherry-picking operates through gatekeeping over who speaks for the people, whose contributions reach the floor, and which silences are read as consensus. Dissenting invocations are filtered out not by argument but by exclusion from the deliberative space itself, as in Cuba.

A further distinction between the two cases lies in the rhetorical function that dominates in each. In Chile, Process Evaluation accounted for 44.2% of invocations; in Cuba, Substantive Deployment for 62.0%. This pattern may appear inverted for a democracy and autocracy. But the two modes mark poles on a continuous axis defined less by regime type than by how interpretive authority is distributed within the drafting body, consistent with the framework's emphasis on the composition of originating coalitions (Brinks and Blass 2018). The majority in a minoritarian coalition pursuing entrenchment against an expected ruling coalition needs the consultation process to be recognized as legitimate, because that recognition is what underwrites the substantive provisions it cannot defend through ordinary politics alone. For the same reasons, the opposition targets the process itself, and substantive deployments recede. A majoritarian coalition, by contrast, needs to socialize substantive decisions already made by the leadership, performed through the public matching of those decisions to consultation input. Process Evaluation then collapses to a defensive minimum because procedural critiques are structurally foreclosed.

What, then, does responsiveness mean within participatory constitution-making? Cherry-picking exposes the limits of standard conceptualizations of responsive representation where elite decisions track cit-

izen preferences, since the match between input and output is partly produced by drafters' own selective characterizations. Citizen input is also endogenous to elite cues, including in constitution-making (Moehler 2007). Where the power relations shaping interpretation are left unexamined, elite capture can be structurally compatible with high responsiveness as traditionally measured (Bagg 2024, 37). What matters instead is the constructive work of representation itself — how competing actors activate social identities to build receptive audiences and, ultimately, winning coalitions (Disch 2021).

Therefore, responsiveness in participatory contexts must capture the order of *justification* rather than the direction of influence. The represented are owed a justification of representatives' actions in terms of their own interests, but owe no such justification in return (Fossen 2019, 834). Specifically, representatives owe constituents a public, challengeable account of how their characterization of the public was reached. Such justification can bring power asymmetries into the open, bolstering organized groups' capacity to credibly threaten withdrawing support and to resist elite capture of participatory institutions. Contestability is the operational test of responsiveness, holding when “all potential majorities within a population possess this counterfactual ability to change any outcomes they care about strongly enough” (Bagg 2024, 41). In participatory constitution-making, this requires checkpoints — across the sequencing, aggregation, and authority of consultation mechanisms — where the gap between referent and object can be seen and challenged (Martin 2025a, 2026).

Aggregation by trusted intermediaries is one such checkpoint, as the Chilean Constitutional Convention's Secretariat of Popular Participation demonstrated (Olivares 2022). The 2023 Constitutional Council went further by contracting universities to manage public participation entirely (Heiss 2023). Natural Language Processing methods can play a complementary role by enabling more transparent measurement of constitutional preferences (Cruz et al. 2023). Such measures create a shared evidentiary record at some institutional distance from the drafting body's partisan dynamics, but cannot address the structural dynamics that make will-confirmation, and by extension cherry-picking, the rule rather than the exception (Martin 2026). The actual constraint on capture lies with organized groups outside the drafting body mounting credible challenges to elite characterizations during drafting, not after the fact.

Beyond design questions, the present framework points to two lines of future research. First, the two modes of cherry-picking are not regime-bound, and hybrid regimes (Carothers 2018; Levitsky and Way 2010) offer a promising site for tracing how shifts in elite control and institutional constraint move draft-

ing bodies along the axis of authority concentration. Cases such as Côte d’Ivoire, where a narrow elite dominated constitution-making despite relatively democratic conditions (Martin 2025b, 13), suggest that the concentrated mode can surface wherever a small group monopolizes interpretive authority over consultation. Second, if procedural propriety in consultation primarily signals the legitimacy of the rulemaker (Feroz et al. 2026; Hirschl and Hudson 2024), what does cherry-picking signal, and to whom? Constitutions shaped through visibly partial invocation of public input, without meaningful opportunities for contestation, may face downstream legitimacy difficulties, as Chile’s two rejected drafts suggests.

This study offers a methodological foundation for such inquiry. The LLM-assisted coding pipeline applied to the Chilean and Cuban transcripts is designed to scale to long-form deliberative corpora too large for hand-coding but too discursively complex for short-form natural language processing. Pairing classification at scale with a robust validation protocol (Abdurahman et al. 2025; Pangakis et al. 2023; Törnberg 2024) supports the kind of systematic claims about rhetorical patterns the cherry-picking framework requires while keeping classifier outputs subject to human review. The codebook, validation protocol, and audit trails are released in full to support replication and adaptation.

Cherry-picking, on the account developed here, is constitutive of how participatory constitution-making works. The construction of “the people” in plenary debate — whose voice counts, on what terms, and to what ends — is the rhetorical surface of an interpretive practice that participatory institutions, as currently arranged, neither require representatives to acknowledge nor make available to be challenged. What constituent power theory frames as the people’s authoring of the constitution is, in the cases examined here, a curated portrayal advanced by drafters whose interpretive authority over the consultation record outpaces any institutional check on its use. The challenge for scholars and practitioners of participatory constitution-making is to configure the institutional conditions under which the inevitable construction of that voice becomes contestable by the publics it claims to speak for.

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Data Availability Statement. All data, code, and materials needed to reproduce the analyses in this article are available via [GitHub](#).

AI Use. This article uses a Large Language Model as a text classifier. Anthropic’s Claude Opus 4.6 (model identifier claude-opus-4-6, version released February 2026; accessed via the Anthropic API at [api.anthropic.com](#)) was used between April 14 and April 16, 2026 to classify speaker turns from the Chilean and Cuban plenary transcripts at temperature 0; 17 classifications (roughly 2.3% of 729 invocations) were hand-corrected by the author and folded into the analytic dataset, with each correction documented in Appendix A.4. The model’s role, the validation protocol, and all materials needed to reproduce the classifications — including the full prompt, codebook, inter-coder reliability statistics, and error analysis — are documented in Section 4.3 and Appendix A.1–A.4, and released with the replication materials. Known limitations of LLM-based classification, including sensitivity to prompt phrasing and potential biases inherited from training data, are addressed by the validation protocol described in Appendix A.

Claude Code (same model, accessed via the Claude Code CLI between April 21 and May 6, 2026) was used to generate portions of the analysis scripts — including the classification pipeline, tabulation and figure code, and LaTeX table generation — all of which were reviewed, tested, and verified by the author against the underlying data; the full code is included in the replication materials. Claude (Opus 4.6, accessed via [claude.ai](#) during the same period) was additionally used for minor prose editing. Beyond these uses, AI was *not* used to generate analytic interpretation, theoretical claims, or argumentative content; all ideas, arguments, analytic decisions, and final wording are the author’s own, for which the author assumes full responsibility.

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